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Case Number: 20TRCV00180 Hearing Date: August 5, 2026 Dept: P

Motion to Tax Costs

Moving Party: Plaintiff Kelly Thompson

Responding Party: Defendants Timothy Roth, Roth Management Group, LLC, 505 Marine, LLC, Big Red Neb, LLC, 516 N. Fries, LLC, and 6211 S. Vermont, LLC

RULING

The court considered the moving papers and opposition. Plaintiff Thompson's Motion to Tax Costs is GRANTED in part and DENIED in part. The court GRANTS Plaintiff Thompson's Motion to Tax the memorandum of costs by $434,000.00 in attorney's fees and $276.03 in "other" costs.

PROCEDURAL BACKGROUND

On February 25, 2020, Plaintiff Kelly Thompson ("Thompson") filed a complaint against Defendants Timothy Robert Roth, Roth Management Group, LLC, 505 Marine, LLC, Big Red Neb, LLC, 516 N Fries, LLC, 6211 S Vermont LLC, and DOES 1 through 100, inclusive, alleging seven causes of action for: (1) Breach of Contract; (2) Open Book Account; (3) Account Stated; (4) Quantum Meruit; (5) Breach of Fiduciary Duty; (6) Conversion; and (7) Violation of Penal Code Section 496.

On February 25, 2022, Plaintiffs Timothy Roth, as an individual and as successor in interest to 3302 Manhattan Avenue, Roth Management Group, LLC, 435-445 Avalon, LLC, and 505 Marine, LLC (collectively, the "Roth Defendants") filed a complaint against Defendants Kelly Thompson, Daniel Curtis Investments, LLC, and DOES 1 through 100, inclusive, alleging three causes of action for: (1) Fraud and Deceit; (2) Conversion; and (3) Common Count – Money Had and Received.

On September 12, 2024, Thompson filed a first amended complaint ("FAC") against the same Defendants, alleging twenty-five causes of action.

On December 13, 2024, Thompson filed a second amended complaint ("SAC") against the same Defendants, alleging eleven causes of action.

On March 3, 2025, Thompson filed a third amended complaint ("TAC") against the same Defendants, alleging eleven causes of action for: (1) Breach of Contract; (2) Breach of Contract; (3) Breach of Contract; (4) Breach of Contract; (5) Breach of Contract; (6) Account Stated; (7) Quantum Meruit; (8) Quantum Meruit; (9) Quantum Meruit; (10) Quantum Meruit; and (11) Quantum Meruit.

From August 1 through 14, 2025, the court held a nonjury trial.

On October 31, 2025, the court issued a tentative Statement of Decision in which the court announced its tentative decision that judgment on the Thompson complaint is entered for Defendant Timothy Roth and the related entity Defendants, and judgment on the Roth complaint is entered for Thompson.

On December 15, 2025, the court issued a Final Statement of Decision in which the court announced the judgment on the Thompson complaint is entered for Defendant Timothy Roth and the related entity Defendants as to each cause of action, and judgment on the Roth complaint is entered for Thompson.

On January 7, 2026, judgment was entered in favor of Defendants Timothy Roth, Roth Management Group, LLC, 505 Marine, LLC, Big Red Neb, LLC, 516 N. Fries, LLC, and 6211 S. Vermont, LLC and against Plaintiff Kelly Thompson.

On March 20, 2026, the Roth Defendants filed a Memorandum of Costs. On the same day, the Roth Defendants filed a motion for attorney's fees.

On April 6, 2026, Plaintiff Thompson filed the instant motion. On May 20, 2026, the Roth Defendants filed an opposition.

FACTUAL BACKGROUND

Plaintiff Thompson alleges that she and Roth have been business associates since prior to 2016, and from October 2016 until October 2018, Thompson provided services and consultation regarding financing, land development issues, and other services assigned to Plaintiff Thompson by Roth. (Thompson TAC, ¶¶ 15-16.) Plaintiff Thompson alleges that she and Roth agreed upon a list of sums to be paid to Plaintiff regarding several projects, titled Big Red Neb, Fries Purchase, Marine Purchase, 4839-41 Beverly Loan, 4847 Beverly Loan, 4839-47 Beverly Sale, 2018 Project Management and Expediting, and Vermont Loan. (Thompson TAC, ¶ 16.) Plaintiff Thompson alleges that the Roth Defendants have failed and refused to pay off the outstanding obligations to Plaintiff Thompson. (Thompson TAC, ¶ 19.)

The Roth Defendants allege that Thompson intentionally suppressed the fact that she only possessed a California salesperson license, that she was not a licensed broker, and that she was not affiliated with a responsible licensed real estate broker. (Roth Complaint, ¶ 17.) The Roth Complaint alleges that Roth was deceived, causing Thompson to be paid a $5,000.00 commission for loan processing. (Roth Complaint, ¶ 18.)

LEGAL STANDARD

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. This means that the prevailing party is entitled to all of his costs unless another statute provides otherwise. Absent such statutory authority, the court has no discretion to deny costs to the prevailing party." (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 128-129 (citations and internal quotations omitted); see also Code of Civ. Proc. Section 1032(b).)

Allowable costs under Code of Civil Procedure Section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under Section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount). If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (Ladas v. California State Automotive Assoc. (1993) 19 Cal.App.4th 761, 773-774.) Whereas, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (Ibid.) Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. (Ibid.) However, because the right to costs is governed strictly by statute, a court has no discretion to award costs not statutorily authorized. (Ibid.)

DISCUSSION

Moving Party's Argument

Plaintiff Thompson argues that because Big Red Neb is a suspended entity and thus did not have the capacity to appear in this action to defend against Plaintiff Thompson's claims, any costs sought on its behalf must be reduced from the memorandum of costs. Next, Plaintiff Thompson argues that the Roth Defendants are not entitled to recover the jury fees of $150.00, because there is no evidence that they paid the fee and they voluntarily waived the right to a jury trial. Plaintiff Thompson further argues that the Roth Defendants may seek a refund for the jury fees. Next, Plaintiff Thompson argues that the Roth Defendants' claim for attorney's fees should be stricken from the memorandum of costs because there is no contractual or statutory basis for the fees. Finally, Plaintiff Thompson argues that the "other" costs included in the memorandum of costs should be stricken as non-recoverable pursuant to Code of Civil Procedure Section 1033.5

Opposing Party's Argument

The Roth Defendants argue that jury fees are an expressly listed recoverable item of costs, and the memorandum of costs itself evidences the payment of jury fees. The Roth Defendants argue that their attorney's fees request in the memorandum of costs should not be stricken due to Plaintiff Thompson's failure to address the substantive positions raised in the motion for attorney's fees. Finally, the Roth Defendants argue that the "other" costs claimed are recoverable under the court's discretion.

Merits of the Motion

A. Defendant Big Red Neb

Plaintiff Thompson argues that because Defendant Big Red Neb has been a suspended entity and thus lacked the capacity to appear in this action to defend against Plaintiff Thompson's claims, any costs sought on Defendant Big Red Neb's behalf must be reduced from the Roth Defendants' memorandum of costs. The court notes that Plaintiff Thompson has not identified a specific amount by which the requested costs should be reduced.

The court is unpersuaded by Plaintiff Thompson's argument. The sums requested by the Roth Defendants are on behalf of the Roth Defendants collectively.

Accordingly, the court declines to reduce the costs requested by the Roth Defendants on these grounds.

B. Jury Fees

Next, Plaintiff Thompson seeks to strike $150.00 from the memorandum of costs, because the Roth Defendants voluntarily waived the right to a jury trial.

However, jury fees are recoverable, even if the case does not proceed to a jury trial, as a party must pay the jury fee on or before the date of the initial case management conference to preserve the right to a jury trial. (Naser v. Lakeridge Athletic Club (2014) 227 Cal.App.4th 571, 576.)

Here, the court's record indicates that Defendant Roth filed a Notice of Posting of Jury Fees on August 12, 2020, when the trial date had not been set yet.

Accordingly, the court declines to strike this cost.

C. Attorney's Fees

Plaintiff Thompson next seeks to strike the $434,000.00 for attorney's fees from the memorandum of costs on the grounds that attorney's fees are not authorized by contract or by statute and thus require a noticed motion.

The Roth Defendants argue that their memorandum of costs states that there is a contractual and statutory basis to recover attorney's fees.

However, the Roth Defendants' clarify within the worksheet attached to their memorandum of costs that attorney's fees are requested "as per motion." (Memorandum of Costs, p. 6.) The Roth Defendants state that Civil Code Section 1717 "is relied upon" because "[c]ontracts were alleged and the right to fee recovery was alleged as to them," and "a failed claim of right to fee award allows Defendants to recover." (Memorandum of Costs, p. 6.) The Roth Defendants again refer to their motion for attorney's fees and state that the "other two statutory bases [for the recovery of attorney's fees] are addressed in the Motion and rely on statutes that Plaintiff was prepared to rely upon." (Memorandum of Costs, p. 6.)

As acknowledged by the Roth Defendants, their request for attorney's fees is dependent upon their motion for attorney's fees and is therefore not "fixed without necessity of a court determination." (Memorandum of Costs, p. 1, ¶ 10.)

Accordingly, the court strikes the Roth Defendants' request for $434,000.00 in attorney's fees from their memorandum of costs.

D. "Other" Costs

Finally, Plaintiff Thompson seeks to strike the total of $276.03 in "other" costs claimed for "trial supplies, remote hrg fee, drop and pick up trial documents." (Memorandum of Costs, p. 5, ¶ 15.) Plaintiff Thompson argues that these costs are not recoverable under Code of Civil Procedure Section 1033.5.

The court notes that the Roth Defendants have not provided any documentation to support these costs and have not otherwise made any showing that these costs were reasonably necessary to the litigation.

Accordingly, the Roth Defendants' memorandum of costs is reduced by $276.03.

CONCLUSION

Based on the foregoing, Plaintiff Thompson's Motion to Tax Costs is GRANTED in part and DENIED in part. The court GRANTS Plaintiff Thompson's Motion to Tax the memorandum of costs by $434,000.00 in attorney's fees and $276.03 in "other" costs.

Moving party is ordered to give notice of ruling.

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Motion for Attorney's Fees

Moving Party: Defendants Timothy Roth, Roth Management Group, LLC, 505 Marine, LLC, Big Red Neb, LLC, 516 N. Fries, LLC, and 6211 S. Vermont, LLC

Responding Party: Plaintiff Kelly Thompson

RULING

The court considered the moving papers, opposition, and reply. The Roth Defendants' Motion for Attorney's Fees is DENIED.

PROCEDURAL BACKGROUND

On February 25, 2020, Plaintiff Kelly Thompson ("Thompson") filed a complaint against Defendants Timothy Robert Roth, Roth Management Group, LLC, 505 Marine, LLC, Big Red Neb, LLC, 516 N Fries, LLC, 6211 S Vermont LLC, and DOES 1 through 100, inclusive, alleging seven causes of action for: (1) Breach of Contract; (2) Open Book Account; (3) Account Stated; (4) Quantum Meruit; (5) Breach of Fiduciary Duty; (6) Conversion; and (7) Violation of Penal Code Section 496.

On February 25, 2022, Plaintiffs Timothy Roth, as an individual and as successor in interest to 3302 Manhattan Avenue, Roth Management Group, LLC, 435-445 Avalon, LLC, and 505 Marine, LLC (collectively, the "Roth Defendants") filed a complaint against Defendants Kelly Thompson, Daniel Curtis Investments, LLC, and DOES 1 through 100, inclusive, alleging three causes of action for: (1) Fraud and Deceit; (2) Conversion; and (3) Common Count – Money Had and Received.

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From August 1 through 14, 2025, the court held a nonjury trial.

On October 31, 2025, the court issued a tentative Statement of Decision in which the court announced its tentative decision that judgment on the Thompson complaint is entered for Defendant Timothy Roth and the related entity Defendants, and judgment on the Roth complaint is entered for Thompson.

On December 15, 2025, the court issued a Final Statement of Decision in which the court announced the judgment on the Thompson complaint is entered for Defendant Timothy Roth and the related entity Defendants as to each cause of action, and judgment on the Roth complaint is entered for Thompson.

On January 7, 2026, judgment was entered in favor of Defendants Timothy Roth, Roth Management Group, LLC, 505 Marine, LLC, Big Red Neb, LLC, 516 N. Fries, LLC, and 6211 S. Vermont, LLC and against Plaintiff Kelly Thompson.

On March 20, 2026, the Roth Defendants filed a Memorandum of Costs. On the same day, the Roth Defendants filed the instant motion. On July 23, 2026, Thompson filed an opposition. On July 29, 2026, the Roth Defendants filed a reply.

On April 6, 2026, Thompson filed a motion to tax costs.

FACTUAL BACKGROUND

Plaintiff Thompson alleges that she and Roth have been business associates since prior to 2016, and from October 2016 until October 2018, Thompson provided services and consultation regarding financing, land development issues, and other services assigned to Plaintiff Thompson by Roth. (Thompson TAC, ¶¶ 15-16.) Plaintiff Thompson alleges that she and Roth agreed upon a list of sums to be paid to Plaintiff regarding several projects, titled Big Red Neb, Fries Purchase, Marine Purchase, 4839-41 Beverly Loan, 4847 Beverly Loan, 4839-47 Beverly Sale, 2018 Project Management and Expediting, and Vermont Loan. (Thompson TAC, ¶ 16.) Plaintiff Thompson alleges that the Roth Defendants have failed and refused to pay off the outstanding obligations to Plaintiff Thompson. (Thompson TAC, ¶ 19.)

The Roth Defendants allege that Thompson intentionally suppressed the fact that she only possessed a California salesperson license, that she was not a licensed broker, and that she was not affiliated with a responsible licensed real estate broker. (Roth Complaint, ¶ 17.) The Roth Complaint alleges that Roth was deceived, causing Thompson to be paid a $5,000.00 commission for loan processing. (Roth Complaint, ¶ 18.)

LEGAL STANDARD

A prevailing party is entitled to recover costs, including attorney's fees, as a matter of right. (See Code Civ. Proc. Sections 1032(a)(4), 1032(b), and 1033.5.) In a breach of contract action, attorney's fees shall be awarded when a contract provides that one of the parties or the prevailing party shall be awarded attorney's fees in an action on that contract. (See Civ. Code Section 1717.)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623-624.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49 (discussing factors relevant to proper attorneys' fees award).) The factors considered in determining the modification of the lodestar include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award." (Mountjoy v. Bank of Am. (2016) 245 Cal.App.4th 266, 271.)

In challenging attorneys' fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

DISCUSSION

Moving Party's Argument

The Roth Defendants argue that they are entitled to attorney's fees based on Civil Code Sections 1717 and 1717.5 in addition to Labor Code Section 218.5. The Roth Defendants argue that they are entitled to fees based on the court's January 6, 2026 judgment entered in their favor, and request $434,000.00 pursuant to Civil Code Section 1717, $19,200.00 pursuant to Civil Code Section 1717.5, and $86,000.00 pursuant to Labor Code Section 218.5. The Roth Defendants argue that their requests are overlapping. The Roth Defendants argue that Civil Code Section 1717 provides a basis for the recovery of fees because Thompson alleged multiple purported contracts and asserted a right to attorney's fees. The Roth Defendants argue that Civil Code Section 1717.5 also applies because Thompson brought causes of action against the Roth Defendants for account stated and open book account which were defeated. Finally, the Roth Defendants argue that they are entitled to an award of attorney's fees pursuant to Labor Code Section 218.5, because Thompson asserted that she was an employee during the course of trial even though her employment-related causes of action were defeated pretrial.

Opposing Party's Argument

Thompson argues that the reciprocity principle of Civil Code Section 1717(a) does not apply here, because the Roth Defendants cannot establish the existence of a written contract containing an attorney's fee provision and that Thompson would have been entitled to attorney's fees if she had prevailed. Thompson argues that the Roth Defendants are not entitled to recover attorney's fees pursuant to Civil Code Section 1717.5 because neither Thompson's SAC nor TAC contain any cause of action seeking recovery for open book account. Next, Thompson argues that the Roth Defendants have no right to attorney's fees under Labor Code Section 218.5, because the TAC does not allege causes of action for violations of the Labor Code. Thompson argues that there is no contractual or statutory basis for the recovery of attorney's fees by the Roth Defendants.

Reply Argument

The Roth Defendants argue that their right to recover attorney's fees is not dependent upon a written contract and argue that Thompson's pleadings reflect that she was entitled to an award of attorney's fees pursuant to the oral contracts she alleged. The Roth Defendants reiterate their argument that they are entitled to recover attorney's fees pursuant to Section 1717.5 based on Thompson's defeated causes of action for Account Stated and Open Book Account.

Request for Judicial Notice

Thompson requests that the court take judicial notice of the following records: (1) Thompson's Complaint; (2) Thompson's First Amended Complaint; (3) Thompson's Second Amended Complaint; (4) Thompson's Third Amended Complaint; and (5) the court's Minute Order, dated November 21, 2024.

Pursuant to Evidence Code Section 452(d), the court make take judicial notice of its own records. Accordingly, Thompson's request for judicial notice is GRANTED in its entirety.

Merits of the Motion

A. Entitlement to Fees

Civil Code Section 1717(a) provides that "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs."

Here, the Roth Defendants argue that they are entitled to an award of attorney's fees pursuant to Civil Code Section 1717 because Plaintiff Thompson recovered nothing against Defendants, and Plaintiff Thompson repeatedly asserted a right to recovery of attorney's fees based on a variety of purported contracts. However, the Roth Defendants have not pointed to any provision authorizing the recovery of attorney's fees by either party.

Therefore, the court finds that the Roth Defendants have not established that they are entitled to the recovery of attorney's fees pursuant to Civil Code Section 1717, as they have identified no applicable contractual provision.

The Roth Defendants also argue that they are alternatively entitled to recover attorney's fees pursuant to Civil Code Section 1717.5 and Labor Code Section 218.5.

The court finds that Labor Code Section 218.5 is wholly inapplicable here, as Plaintiff Thompson has not brought an action "for the nonpayment of wages, fringe benefits, or health and welfare or pension fund contributions." (Lab. Code Section 218.5(a).) Rather, the evidence produced and argued by Plaintiff at trial was that there were multiple, severable contracts between the parties, not an employment relationship.

Next, Civil Code Section 1717.5(a)(1) provides that "in any action on a contract based on a book account…which does not provide for attorney's fees and costs, as provided in Section 1717, the party who is determined to be the party prevailing on the contract shall be entitled to reasonable attorney's fees, as provided below, in addition to other costs." Section 337a defines a "book account" as "a detailed statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation, and shows the debits and credits in connection therewith, and against whom and in favor of whom entries are made, is entered in the regular course of business as conducted by such creditor or fiduciary, and is kept in a reasonably permanent form and manner…" (Civ. Code Section 337a(a).)

Here, the Roth Defendants argue that Civil Code Section 1717.5 applies because Plaintiff "asserted claims of 'Account Stated' which were substantially identical to [Plaintiff's] Open Book Account claims." (Mot. 8:3-5.) Again, the Roth Defendants have not offered evidence of any book account, but instead generally point to Plaintiff Thompson's allegations. Indeed, the court found that Plaintiff did not meet her burden of proof to show that there were any accounts between the parties when analyzing Plaintiff's "common counts" cause of action. The court finds that the Roth Defendants have not offered a sufficient basis for the recovery of attorney's fees pursuant to Civil Code Section 1717.5.

Finally, the Roth Defendants' motion is insufficient, as the Roth Defendants have provided no declaration attesting to the total time spent on this matter. The Roth Defendants only offer the declaration of Einar Wm. Johnson ("Johnson"), who declares that the Roth Defendants have incurred "substantial attorney fees of no less than $434,000. That sum is derived from the hours expended in this action by counsel for Defendants times discounted hourly rates." (Johnson Decl., ¶ 3.)

However, there is no mention of the total number of hours incurred by the Roth Defendants' counsel in the Johnson Declaration, and thus the court has an insufficient basis from which to conclude that the Roth Defendants' request for attorney's fees is reasonable.

Accordingly, the Roth Defendants' Motion for Attorney's Fees is DENIED.

CONCLUSION

Based on the foregoing, the Roth Defendants' Motion for Attorney's Fees is DENIED.

Moving party is ordered to give notice of ruling.